

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #06	CCRB Case #: 202100806	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/26/2021 2:38 PM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 7/26/2022	Precinct: 75		
Date/Time CV Reported Wed, 01/27/2021 6:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/04/2021 11:10 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Gessner	18502	940186	075 PCT
2. An officer			075 PCT
3. POM Henry Henriquez	08780	938657	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Patrick Jeanbaptiste	15908	958174	075 PCT
2. SGT Emil Tokarski	04490	945056	075 PCT
3. PO Anthony Mastrokyriakos	31480	955146	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer threatened to damage § 87(2)(b) s property.	A . Officer(s) Unidentified
B . POM Michael Gessner	Abuse: Police Officer Michael Gessner entered § 87(2)(b) in Brooklyn.	B . Unsubstantiated
C . POM Henry Henriquez	Abuse: Police Officer Henry Henriquez entered § 87(2)(b) in Brooklyn.	C . Unsubstantiated
D . POM Michael Gessner	Abuse: Police Officer Michael Gessner searched § 87(2)(b) in Brooklyn.	D . Unsubstantiated
E . POM Henry Henriquez	Abuse: Police Officer Henry Henriquez searched § 87(2)(b) in Brooklyn.	E . Unsubstantiated
F . POM Michael Gessner	Abuse: Police Officer Michael Gessner threatened to arrest § 87(2)(b)	F . Unsubstantiated
G . POM Michael Gessner	Discourtesy: Police Officer Michael Gessner spoke discourteously to § 87(2)(b)	G . Unfounded
H . POM Michael Gessner	Abuse: Police Officer Michael Gessner seized § 87(2)(b) s property.	H . Unsubstantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 27, 2021, § 87(2)(b) filed this complaint with IAB. On February 4, 2021, the complaint was received at the CCRB under IAB Log #21-2233.

On January 26, 2021, § 87(2)(b) was in his apartment, located at § 87(2)(b) in Brooklyn, with his girlfriend § 87(2)(b). PO Michael Gessner and PO Henry Henriquez of the 75th Precinct knocked on the front door and an officer threatened to break down the door if it was not opened (**Allegation A – Abuse of Authority, officer unidentified**). § 87(2)(b) went to the bathroom, and when he exited, PO Gessner and PO Henriquez were inside of the apartment. § 87(2)(b) did not know how they got in (**Allegations B and C – Abuse of Authority, unsubstantiated**). PO Gessner and PO Henriquez walked around the apartment, opened doors, and looked into rooms (**Allegations D and E – Abuse of Authority: unsubstantiated**). PO Gessner told § 87(2)(b) that if he did not leave the apartment that he would be arrested (**Allegation F – Abuse of Authority: unsubstantiated**). PO Gessner used the word “fuck” while speaking with § 87(2)(b) (**Allegation G – Discourtesy: unfounded**). PO Gessner took § 87(2)(b)'s key to the front door and gave it to the landlord (**Allegation H – Abuse of Authority: unsubstantiated**). § 87(2)(b) (g). § 87(2)(b) No arrests or summonses resulted from this incident.

Seven BWC videos of this incident were obtained and can be found in IA #31. Summaries of the footage can be found in IAs #38-54.

Allegation A – Abuse of Authority: An officer threatened to damage § 87(2)(b)'s property.

§ 87(2)(b) testified that three and a half months prior to this incident, he rented a bedroom in § 87(2)(b) in Brooklyn, from an § 87(2)(b) who rented the apartment. The landlord, § 87(2)(b) previously informed § 87(2)(b) that he was the owner of the building and that § 87(2)(b) owed him approximately \$30,000 dollars in rent and that they were going to court. On some day in the beginning of January 2021, § 87(2)(b) returned to the apartment and noticed the apartment door lock had been changed. § 87(2)(b) called § 87(2)(b) because he initially believed that § 87(2)(b) changed the locks, but the calls went straight to voicemail. § 87(2)(b) approached § 87(2)(b) and told him that if he broke the door, he would be arrested for trespassing. § 87(2)(b) told § 87(2)(b) that he had § 87(2)(b) arrested earlier in the day. § 87(2)(b) called 911 and two officers responded. § 87(2)(b) showed the officers his bills, and the officers told § 87(2)(b) that he was not allowed to change the lock and deny § 87(2)(b) entry into the apartment. § 87(2)(b) then changed the locks to the apartment. Since the day § 87(2)(b) changed the locks, § 87(2)(b) had knocked on § 87(2)(b)'s apartment door multiple times, but § 87(2)(b) had not answered it. § 87(2)(b) had been confiscating § 87(2)(b)'s mail from the shared mailbox. On January 26, 2021, at approximately 2:48 p.m., § 87(2)(b) and his girlfriend at the time, § 87(2)(b) who was visiting, were in the apartment. § 87(2)(b) woke § 87(2)(b) up and told him that there was someone knocking on the apartment door. § 87(2)(b) walked to the front of the apartment and from the window saw that it was police officers. She informed § 87(2)(b) who told her not to open the door. Voices from the other side of the door said that if the door was not opened, that they would break it down (**Board Review 01**).

§ 87(2)(b) was unavailable to the investigation.

PO Henriquez's BWC footage, starting at the 00:00 mark of the timestamp visible at the bottom of the screen, shows PO Henriquez knocking on the apartment door. At 00:17, § 87(2)(b) opens the door and approaches the officers and speaks with them, though there is no audio. At 01:00, the audio begins, and the officers talk to § 87(2)(b) who stands in the open doorway, about who is in the apartment. There is no audio in the timeframe that the allegation was made (**Board Review 02**).

PO Gessner's BWC footage starts after PO Henriquez's BWC footage and also does not capture the moment in time in which the allegation was made (**Board Review 03**).

PO Gessner testified that neither he nor PO Henriquez threatened to break down the door (**Board Review 04**).

PO Henriquez did not recall himself or PO Gessner threatening to break down the door (**Board Review 05**).

Sgt. Emil Tokarski, the patrol supervisor who arrived toward the end of the incident, was not present for this portion of the incident (**Board Review 07**).

§ 87(2)(g)

Given the above, it is recommended that **Allegation A** be closed as **officer unidentified**.

Allegation B – Abuse of Authority: Police Officer Michael Gessner entered § 87(2)(b) in Brooklyn.

Allegation C – Abuse of Authority: Police Officer Henry Henriquez entered § 87(2)(b) in Brooklyn.

Allegation D– Abuse of Authority: Police Officer Michael Gessner searched § 87(2)(b) in Brooklyn.

Allegation E – Abuse of Authority: Police Officer Henry Henriquez searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) testified that while § 87(2)(b) spoke with the officers at the front door he went to the bathroom. When he exited the bathroom, he saw PO Gessner and PO Henriquez inside of the apartment. § 87(2)(b) did not inform § 87(2)(b) how they gained entry into the apartment, or whether there was any conversation about entering at the door. PO Gessner and PO Henriquez walked around the apartment and opened all the bedroom doors and looked into the rooms (**Board Review 01**).

§ 87(2)(b) was unavailable to the investigation.

PO Henriquez's BWC footage, starting at the 03:08 mark of the timestamp visible at the bottom of the screen, shows that § 87(2)(b) speaks with the officers at the front door. § 87(2)(b) walks further into the apartment, leaves the door open, and invites the officers inside (**Board Review 02**).

Both PO Henriquez and PO Gessner § 87(2)(g) spoke with the landlord who explained that the legal tenant, § 87(2)(b) was arrested for assaulting him a few days prior to this incident and that he had an order of protection against the legal tenant. The landlord, § 87(2)(b) stated that there was not supposed to be anyone inside of the apartment. PO Gessner spoke with a detective, who he did not recall, who confirmed that the apartment was supposed to be empty. After speaking with § 87(2)(b) and the detective, PO Gessner and PO Henriquez were convinced that § 87(2)(b) and § 87(2)(b) were trespassing and resided in the apartment for less than 30 days. The landlord told the officers that they could enter the apartment to get the trespassers out. The officers then knocked on the apartment door, and after speaking with § 87(2)(b) and § 87(2)(b) they entered the apartment without requesting permission. Because

both PO Gessner and PO Henriquez were convinced that § 87(2)(b) and § 87(2)(b) were illegally in the apartment and were there for less than 30 days, the officers believed that they did not have a right to residency and that they did not need § 87(2)(b)'s or § 87(2)(b)'s permission to enter the apartment. PO Gessner and PO Henriquez were consistent in their statements that after entering the apartment, that they cleared the apartment to make sure that there were no other individuals inside of the apartment. PO Gessner testified that § 87(2)(b) told him that she had clothing in the closet of the room that she was staying in, so he looked in the closet to verify the information to aid in his investigation into whether she and § 87(2)(b) were trespassing (**Board Review 04, 05**).

§ 87(2)(g). PO Gessner was shown the DD5s from § 87(2)(b)'s arrest, which lists Det. Christopher Debernardo of the 75th Precinct Detective's Squad, but PO Gessner did not recall if it was the officer that he spoke with (**Board Review 05, 07**).

§ 87(2)(b) alleged that when he exited the bathroom, that he saw PO Gessner and PO Henriquez inside of the apartment. The BWC footage shows that § 87(2)(b) invited the officers inside of his apartment. Each officer testified that the landlord told them that § 87(2)(b) was trespassing and had been at the location for less than 30 days, that the information was confirmed by an unidentified detective, and that they did not need § 87(2)(b)'s permission to enter as the landlord consented and § 87(2)(b) did not have a legal right to residency at the location. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegations B - E** be closed as **unsubstantiated**.

Allegation F– Abuse of authority: Police Officer Michael Gessner threatened to arrest § 87(2)(b).

§ 87(2)(b) alleged that PO Gessner told § 87(2)(b) that if he did not leave, he would be arrested for trespassing (**Board Review 01**).

PO Gessner's BWC footage shows the following comments. All time stamps refer to the timestamp visible at the bottom of the screen:

2:40: § 87(2)(b) "I don't need to come out the door" and PO Gessner "Yes you do. Here's the deal; either you leave or you leave with us"

23:30: PO Gessner to § 87(2)(b) "Sir, pack up your stuff or you come with us"

35:40: PO Gessner to another officer "If he calls 911 again, he's going to get locked up"

35:44: PO Gessner to § 87(2)(b) "Yeah, you're going to get locked up. You're going to get locked up"

--At 37:10: PO Gessner to § 87(2)(b) "You come back into this house and it's on camera, you're going to get arrested" (**Board Review 03**).

PO Gessner and PO Henriquez were consistent in their statements that § 87(2)(b) claimed that he lived at the location, however, when they asked him for proof or documentation with his name on it, he was unable to provide any proof of residency. Because the landlord told them that he did not know who § 87(2)(b) was and that § 87(2)(b) had let himself into the apartment less than 30 days prior, because an unidentified detective told them that the apartment was supposed to be

empty, and because § 87(2)(b) could not provide any proof that he lived at the location, the officers were convinced that § 87(2)(b) was trespassing. The officers explained to § 87(2)(b) that if he did not leave the location that he would be arrested for trespassing (**Board Review 04, 05**).

§ 87(2)(b) alleged that PO Gessner and PO Henriquez threatened to arrest him if he did not leave the apartment. Both PO Gessner and PO Henriquez acknowledged threatening to arrest § 87(2)(b) and each officer testified that they believed that § 87(2)(b) was trespassing at the location and that he had been living there for less than thirty days. § 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: Police Officer Michael Gessner spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) alleged that PO Gessner told § 87(2)(b) that he needed to “get the fuck out” or he would be arrested. PO Gessner used the word “fuck” approximately twice (**Board Review 01**).

PO Gessner did not recall if he used the word “fuck” at any point. PO Henriquez did not recall if PO Gessner used the word “fuck” at any point (**Board Review 04, 05**).

PO Gessner’s BWC footage, which captures the incident from the moment the officers knock on the door to the moment the officers exit the apartment and secure the door, does not show PO Gessner using the word “fuck” at any point (**Board Review 03**).

§ 87(2)(g)

it is therefore recommended that **Allegation G** be closed as **unfounded**.

Allegation H – Abuse of Authority: Police Officer Michael Gessner seized § 87(2)(b) s property.

§ 87(2)(b) alleged that after he packed his belongings and left the location, PO Gessner ordered § 87(2)(b) to hand over his key. § 87(2)(b) gave his key to PO Gessner and PO Gessner gave the key to the landlord (**Board Review 01**).

PO Gessner’s BWC footage, starting at the 37:36 mark of the timestamp visible at the bottom of the screen, shows that the key is already in the lock of the door. PO Gessner locks the door, removes the key, and hands it to the landlord (**Board Review 03**).

PO Gessner did not initially recall taking the key. After reviewing the BWC footage, he recalled that he removed the key from the front door and provided it to the landlord. He stated that he did so because § 87(2)(b) was trespassing and did not have a legal right to be at the location (**Board Review 04**).

§ 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation H** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the second CCRB complaint to which § 87(2)(b) has been a party and he has been named a victim in two additional allegations: **(Board Review 08)**
 - § 87(2)(b)
- PO Gessner has been a member of the NYPD for 16 years and has been a subject in two additional CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- PO Henriquez has been a member of the NYPD for 17 years and has been a subject in eight additional CCRB complaints and 16 allegations, one of which was substantiated. § 87(2)(g)
 - 201304699 involved a substantiated allegation of abuse – retaliatory summons. The Board imposed charges, PO Henriquez was found guilty and the NYPD assigned instructions.

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- On July 12, 2022, an inquiry was filed with the New York City Comptroller’s Office to locate a Notice of Claim for § 87(2)(b). The results are pending and will be added to the case file upon receipt **(Board Review 09)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 13

Investigator: Inv. Thomas Juliano Inv. Thomas Juliano 07/14/2022
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Pena 7/14/2022
Signature Print Title & Name Date